



U.S. DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT

DEMONSTRATION OF RECYCLING OF DEFENSE USED NUCLEAR FUEL

REQUEST FOR APPLICATION (RFA) NUMBER:
DE-FOA-0000001

Request for Application (RFA) Issue Date	Wednesday April 22 nd 2026
RFA Questions	Submit any questions related to the RFA to Aaron S. Nebeker at nebekeas@id.doe.gov by Tuesday May 19 th 2026.
Industry Day, Submission and Selection	DOE's Office of Environmental Management will sponsor an Industry Day event to explain and answer questions about the solicitation process. Currently anticipated for Wednesday May 27 th 2026. Potential attendees should e-mail Aaron S. Nebeker; nebekeas@id.doe.gov for more information.
Offer Submittal	Friday June 19 th 2026



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

1. Introduction

On May 23, 2025, President Trump issued Executive Order (EO) 14302, *Reinvigorating the Nuclear Industrial Base*. The EO called for a recommended national policy to support the management of defense-related used nuclear fuel and high-level waste and the development and deployment of advanced fuel cycle capabilities to establish a safe, secure, and sustainable long-term fuel cycle.

To support implementation of EO 14302, the Department of Energy (DOE), is issuing this Request for Application (RFA) to solicit proposals from entities interested in entering into a long-term lease for property located at the DOE Office of Environmental Management (EM) cleanup site in Idaho, for the purpose of a large scale demonstration of the commercial viability of recycling defense-related used nuclear fuel (UNF) currently in storage at the site.

Due to the proposed size of the demonstration and the long period of time over which it will be conducted, DOE proposes making land located on the north side of the Idaho Nuclear Technology and Engineering Center (INTEC) available for the new build of a dedicated facility.

DOE anticipates the demonstration will be conducted on a scale that demonstrates the complete steady-state recycling operation, including UNF handling, recycling, product separation, and waste management. The demonstration should be conducted using prototypical process equipment. The length of the demonstration is expected to be clearly defined in the proposal and lease agreement.

The Applicant will be responsible for all costs associated with the project and must demonstrate a sound understanding of nuclear fuel recycling as specified in this RFA.

Due to the sensitive nature and higher enrichment of defense-related UNF, EM is issuing this RFA in parallel with the DOE Office of Nuclear Energy's (NE) RFA number DE-FOA-0003611. The DOE EM RFA is supported by Naval Reactors (NR). During the initial phase of the project, EM intends to make some UNF from DOE's Advanced Test Reactor (ATR) available for the demonstration. Currently there are 3,400 UNF elements from ATR in storage at the site representing approximately 3 tHM of enriched uranium (Appendix A).

Subject to negotiations and to optimize any chemical decladding process, DOE will also consider making limited quantities of irradiated material that are representative of other defense related UNF, (e.g. NR UNF), available to the applicant. The ATR UNF and the other irradiated material could be a potential stepping-stone to reprocess other defense-related UNF using the process and new facility should the commercial entity successfully complete the demonstration and subsequent negotiations with DOE.

Teaming is strongly encouraged; however, due to the classified nature of the material being reprocessed or potentially reprocessed, any scope for a non-U.S. company must clearly be defined to ensure compliance with national security concerns. All staff working on the project



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

must be capable of being granted requisite security clearance and facility clearance for the associated facility.

A. STATUTORY AUTHORITY

Statutory authority for this initiative includes, but is not limited to:

- 42 United States Code (U.S.C). § 15801 et seq. – National Energy Policy and Programs
- 42 U.S.C. § 7151 – General transfers
- 42 U.S.C. § 7256 – Contracts, leases, etc., with public agencies and private organizations and persons, General authority, Additional authorities.
- 42 U.S.C. § 2140(a) – Exclusions from license requirement
- 42 U.S.C. § 2011 et seq. – Atomic Energy Act of 1954, 42 U.S.C. § 2011, et. seq., as amended, authorizes DOE to grant leases or easements to non-Federal entities for the use of real property.
- 42 U.S.C. § 5801 et seq. – Energy Reorganization Act of 1974
- 42 U.S.C. § 15801 – Nuclear Energy Innovation Capabilities Act of 2017
- Section 3158 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 1998, as amended, (Public Law 105-85) (50 U.S.C. § 2811) – Authorizes DOE to transfer by sale or lease of real property at DOE defense nuclear facilities for the purpose of permitting the economic development of the property.

B. REGULATORY AUTHORITY

Regulatory authority for this initiative includes, but is not limited to:

- 2 Code of Federal Regulation (C.F.R.) § 930 – Other Transaction Agreements
- 10 C.F.R. § 820 – Procedural Rules for DOE Nuclear Activities
- 10 C.F.R. § 830 – Nuclear Safety Management
- 10 C.F.R. § 835 – Occupational Radiation Protection
- 10 C.F.R. § 840 – Extraordinary Nuclear Occurrences
- 10 C.F.R. § 850 – Chronic Beryllium Disease Prevention Program
- 10 C.F.R. § 851 – Worker Safety and Health Program

C. AGREEMENT INSTRUMENT

After evaluating applications, DOE anticipates using, if applicable, its Other Transaction Authority (OTA) or Atomic Energy Act authority under this RFA. More specifically and if appropriate, DOE anticipates using its Additional Authorities under 42 U.S.C. § 7256(g) or General authority under 42 U.S.C. § 7256(a) to implement OTA agreements under this RFA, which allow maximum flexibility and efficiency when carrying out the lease and demonstration aspects of this initiative. Depending on the Applicant's intent and detailed regulatory plan, some of the provisions of this RFA may be inapplicable. The terms of these



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

OTA agreements will be crafted to streamline regulatory requirements and limit intellectual property (IP) rights to the Government and will be agreed during final negotiations. DOE is not currently seeking to obtain legal rights to any IP such as title to inventions, copyrighted works, or software arising out of this project aside from particular data arising out of the project as discussed below.

The proposal will be evaluated on a sound understanding of the criteria, including the following:

Scale of the Demonstration. A large-scale demonstration using prototypical equipment, conducted under steady-state conditions recycling ATR UNF to recover High Assay Low Enriched Uranium (HALEU).

Business Plan. Designing, financing, permitting, developing, constructing, installing, markets for product, maintaining, operating, and decommissioning the facility at the end of mission. The business plan should include an overall schedule that identifies each phase of the project.

Security Plan. In accordance with DOE security requirements a security plan must be prepared and implemented for the entire length of the project. Security requirements are contained in the following Office of Nuclear Energy (NE) or DOE directives, as applicable:

- DOE O 151.1E, Comprehensive Emergency Management.
- DOE O 470.1A, Safeguards and Security Program Operations Management
- DOE O 470.3C, CH2 Design Basis Threat (DBT).
- DOE O 470.4C, Safeguards and Security Planning
- DOE O 470.5A, Insider Threat Program
- DOE O 471.6, Information Security
- DOE O 471.7, Controlled Unclassified Information
- DOE O 472.2A, Personnel Security, CH1
- DOE O 473.1A, Physical Protection
- DOE O 473.2A, Protective Force Operations
- DOE O 474.2A, CH1, Nuclear Material Control and Accountability
- DOE O 475.2B, Identifying Classified Information
- As applicable – NE O 470.1, Office of Nuclear Energy Safeguards and Security (for NE-authorized facilities).

Regulatory Pathway. The Application is expected to include detailed plans outlining the Applicant's expected regulatory pathway, which may include DOE authorization, Nuclear Regulatory Commission (NRC) licensing, or both in a phased approach.

Proposed DOE Gate Review Points. Recycling of defense UNF has many nuances that need to be carefully evaluated to ensure the success of the project. The Applicant should



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

clearly identify proposed dates for DOE reviews of the project in the schedule.

Material Control and Accountability. From receipt of the UNF through processing, product separation and waste stabilization.

Criticality Control. A description of the proposed criticality controls should be included.

Remote Operation and Maintenance. A description of the planned facility design for remote operation and maintenance.

Main Process Description. Throughput and schedule of operations.

Product Specification. Description of interactions with downstream manufacturers for the product specification for the material that will be produced and plans for transportation of the product.

Mass Balance. Annual mass balance showing required inventory of UNF supplied by DOE, product off-takes and all waste streams produced and their disposition path.

Description of Ability to Transition to Other Defense-Related UNF Recycling.

Waste Management Plan. Waste forms generated, expected quantities and plans to store material.

Decommissioning Plan. Plan for returning the facility or land to the same state that it was originally received at the end of the project.

Based on the quality of the applications, DOE reserves the right to select all, some, or none of the applications received in response to this RFA. If selected to participate in this program, applicants will receive notification from DOE to finalize an agreement.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

2. GENERAL REQUIREMENTS

A. LEASING INFORMATION

In accordance with and subject to the terms, requirements, and conditions of this RFA, the Government may qualify and select one or more Applicant(s) with whom to enter into OTA and/or Lease Agreement negotiations. An Applicant with whom the Government selects to enter into a written and legally binding Lease Agreement is hereinafter referred to as a "Selectee".

After selection, the Selectee(s) and the Government may negotiate the terms, conditions, agreements, plans, schedules, etc. to effectively implement the Applicant's proposed development, use, management, operation, decommissioning, and site restoration/remediation of the Property in a manner that is acceptable to the Government.

The Government may enter into a Lease Agreement that may include the following lease periods:

- i. An initial development period to establish project requirements, complete regulatory and permitting requirements such as National Environmental Policy Act (NEPA), National Historic Preservation Act (NHPA), and other applicable regulatory requirements, secure project financing, complete project design, order long lead-time items, and complete any other tasks required to begin construction of the recycling facilities.
- ii. Project construction. The lease period will be based on a timeline consistent with best practices for constructing a project of the proposed type.
- iii. Operation Phase 1: An operational period will be defined based on the lifecycle rationale in the Selectee's approach for demonstrating recycling using ATR UNF and potentially other irradiated materials.
- iv. Operation Phase 2: Transition moving to alternative defense-related UNF following satisfactory completion of Phase 1 and agreement of all DOE parties to move to Phase 2.

Required decommissioning and site restoration/remediation is expected to occur during a negotiated period after the end/termination of the Lease Agreement and any renewal periods.

The Government's objectives in issuing this RFA and potentially entering into a Lease Agreement for the Property include, but are not limited to, the following (collectively, the "Objectives"):

Enter into a Lease Agreement for the Property (or portion thereof) in accordance with DOE's legal authorities and consistent with the terms documented in the RFA.

Enter into a Lease Agreement for use of the Property in a manner consistent with the



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

following strategic goal: demonstrating beneficial reuse of DOE defense UNF to meet market demand for enriched material, isotopes or other uses.

B. NATIONAL ENVIRONMENTAL POLICY ACT

DOE's decision whether to execute a lease is subject to several environmental laws, including NEPA (42 U.S.C. § 4321, et seq.). NEPA requires federal agencies to consider the potential environmental impacts of their proposed actions prior to making a decision. While NEPA compliance is a federal agency responsibility and the ultimate decision remains with the federal agency, all Qualified Applicants will be required to assist in the timely and effective completion of the NEPA process in the manner most pertinent to their proposed project. In accordance with section 2.3 of DOE's NEPA Implementing Procedures (available at <https://www.energy.gov/nepa/articles/doe-nepa-implementing-procedures-june-2025>), DOE or a Qualified Applicant may prepare a required NEPA document and may choose to enter a third-party agreement wherein the Qualified Applicant(s) pays an environmental contractor to prepare the required NEPA document, and DOE directs the work of that environmental contractor. DOE must comply with NEPA prior to realty agreement execution, or if the NEPA process is not completed before realty agreement execution then the agreement shall be contingent on completion of the NEPA process.

As highlighted in Section 3.0 of DOE's new NEPA implementing procedures, DOE will use all available means to improve the efficiency of its implementation of NEPA. DOE will determine the required level of NEPA review as soon as practicable after identifying that NEPA applies to a proposed action.

DOE will apply any applicable categorical exclusion(s), established by DOE or by another agency and adopted by DOE under section 109 of NEPA (42 U.S.C. § 4336e(c)), as appropriate. If DOE cannot apply a categorical exclusion to the proposed action, DOE will evaluate significance of the proposed action's reasonably foreseeable effects consistent with Section 3.2 of DOE's NEPA implementing procedures. (See Section 2.2, Determining the required level of NEPA review, for further information.)

DOE may use an early scoping process to help determine the required level of NEPA review. DOE may engage any applicant and other parties, as will be beneficial, in the early scoping process. An early scoping process may include, as appropriate to the proposal, steps such as: (1) preliminarily identifying the Federal agencies and other parties that will be involved and that have decisions to make related to the proposal; the range of reasonable alternatives and rationale for excluding certain alternatives from detailed analysis; the scope of environmental effects to be analyzed and rationale for excluding certain environmental effects from analysis; and the schedule, and (2) requesting input from state and local agencies, Tribal governments, industry groups, and the public.

DOE shall develop and modify, as appropriate, a schedule for preparation of any required environmental assessment or environmental impact statement that meets the requirements, including page limits and deadlines, in NEPA and DOE's NEPA implementing procedures.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

C. FINANCIAL REQUIREMENTS

The Applicant(s) must provide the Government documented evidence demonstrating that the Applicant(s) has or will have all funds/financing necessary to accomplish and complete planning, design, permitting, construction, and operation of the facility on or before the date of Lease Agreement execution, or as negotiated thereafter. This could include but is not limited to a corporate parent guarantee of credit facility, an appropriate financial or investment company guarantee of credit facility, audited company financial statements, or other evidence of adequate financial resources that is acceptable to the Government.

The Government may require the Selectee(s) to establish and maintain a decommissioning bond to manage the demolition of improvements installed by or for the Selectee(s) on the Property and restore the Property to the condition in which it existed on the date the Lease Agreement was executed, or as agreed by the Department, upon the expiration or termination of the Lease Agreement.

The Selectee(s) shall, at its sole expense, obtain any and all required permits and approvals and pay all required expenses and fees in connection with its development of the Project.

Should the Applicant wish to pursue financing from DOE's Office of Energy Dominance Financing (EDF), a description of the specific project scope to be covered by the proposed EDF loan should be provided. Applicant(s) that intend to seek EDF financing should specify how they plan to complete the project while remaining in compliance with the denial of double benefit rule, should that rule be found to apply. DOE may execute a conditional Lease Agreement with the Selectee(s) that is contingent on the closing of an EDF loan agreement, if the success of the proposed project is dependent on EDF financing. For more information, see Appendix B.

The Applicant is responsible for all DOE contractor costs to include, but not limited to, costs associated with supporting the project review, supplying UNF to the facility, utility upgrades, loading and transportation of UNF to the Applicants facility, site utility services and ongoing support to the facility during operations. The Applicant during negotiations will be able to negotiate for the use of shared services provided by the site contractor.

D. DEVELOPMENT AND USE REQUIREMENTS

Applicants should submit a proposal for entering into a long-term lease with the DOE for all or a portion of the DOE-identified real property located to the north of the INTEC facility at the Idaho Site as shown in figure 1. Applications must be submitted in accordance with the deadlines on the cover page.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001



Figure 1:-Google Maps - INTEC Location of Land.

All development activities on the Property shall be in accordance with applicable Federal, State, and local laws, rules, regulations, and ordinances, including building codes, as they may be amended from time to time.

All development and construction on the Property shall be compatible with the plans, programs, and missions of the DOE site at which the Property is located. Any upgrades to existing utilities or infrastructure to support the project are the responsibility of the Applicant. Development, construction and operation on the Property will be subject to DOE security requirements, based on location.

DOE will provide to the Selectee existing information related to the specific site. Site characterization to support activities such as licensing, permitting, construction and upgrades are the responsibility of the Selectee.

Relocation of existing improvements on the Property, if any, shall be at the Selectee's sole cost and expense and will be subject to the Government's consent and approval, which may be conditioned or denied. The Selectee(s) shall, at its sole cost and expense, erect a fence or boundary demarcation around the perimeter of the Property, as deemed necessary by the Government and of a type and kind approved by the Government. Such fence or boundary



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

demarcation shall not prevent DOE from entering the Property in an emergency situation without prior notification to the Selectee(s).

The Selectee(s) is responsible for preventing, where possible, minimizing, and repairing soil erosion during the term of the Project. Further, the Selectee(s) must restore areas of erosion resulting from the construction and/or removal of improvements on the Property and the adjacent land impacted by the erosion.

Prior to the commencement of any construction, the Selectee(s) shall deliver to the Government payment or decommissioning bond in amounts and subject to conditions deemed acceptable to the Government, as described in Section 3.2.d.

All uses and activities on the Property shall be in compliance with all applicable Federal, State and local laws, rules, regulations, and ordinances.

The Property shall not be used or permitted to be used in any way or for any purpose except as expressly permitted by the Government and set forth in the Lease Agreement.

It's anticipated that the lessee's operation and construction will be coordinated with other site tenants to minimize impacts.

E. ELIGIBLE APPLICANTS AND PROJECT CONFIGURATIONS

This RFA is open to a range of entities, including but not limited to:

- i. Private Sector Companies: Established companies with demonstrated experience in developing, financing, constructing, operating, and maintaining infrastructure projects, particularly those related to waste management and UNF handling.
- ii. Consortia and Partnerships: Collaborative teams comprised of multiple organizations that collectively possess the necessary expertise and capabilities across relevant domains. Consortia are encouraged to clearly define the roles and responsibilities of each member in their proposal.
- iii. Due to the sensitive nature of defense UNF, any non-US company involvement must be clearly defined, and involvement must be limited to non-sensitive areas.

DOE is seeking proposals for a large-scale demonstration of recycling of ATR UNF as a potential step to recycling other defense UNF. DOE will entertain a broad range of viable approaches from Applicants. The following criteria must be demonstrated in any proposal.

Regulatory Pathway. The Application is expected to include detailed plans outlining the Applicant's expected regulatory pathway, which may include DOE authorization, Nuclear Regulatory Commission (NRC) licensing, or both in a phased approach.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Proposed DOE Gate Review Points. Recycling of defense UNF has many nuances that need to be carefully evaluated to ensure the success of the project. The Applicant should clearly identify proposed dates for DOE reviews of the project in the schedule.

Material Control and Accountability. From receipt of the UNF through processing, product separation and waste stabilization.

Criticality Control. A description of the proposed criticality controls should be included.

Remote Operation and Maintenance. A description of the planned facility design for remote operation and maintenance.

Main Process Description. Throughput and schedule of operations.

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Mass Balance. Annual mass balance showing required inventory of UNF supplied by DOE, product offtakes and all waste streams produced and their disposition path.

Description of Ability to Transition to Other Defense-Related UNF Recycling.

Waste Management Plan. Waste forms generated, expected quantities and plans to store material.

Decommissioning Plan. Plan for returning the facility or land to the same state that it was originally received at the end of the project.

Eligible Applicants are limited to those entities that are organized under the laws of the United States, its states, territories, or possessions; have majority domestic ownership and control; and have a physical place of business in the United States. All Eligible Applicants will be reviewed for risks of undue foreign influence prior to decision making by the Department (see Section 3.4.3). As part of the review, DOE may require that the Applicant(s) provide additional disclosures and information to inform the reviews. DOE will not review applications made by foreign persons or organizations. Determinations by the DOE that an entity is ineligible due to risk evaluations are unappealable.

F. ENTITY OF CONCERN PROHIBITION

Prohibition

No Entity of Concern as defined in Section 10114 of Public Law 117-167 (42 U.S.C. § 18912), may receive any grant, contract, cooperative agreement, or loan of \$10 million or more in DOE funds, including funds made available by the Consolidated Appropriations Act



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

of 2024 (Public Law 118-42), Energy and Water Development and Related Agencies Appropriations Act, 2026 (P.L. 119-74).

In addition, for all Departmental activities authorized under Public Law 117-167, no Entity of Concern (including an individual that owns or controls, is owned or controlled by, or is under common ownership or control with an Entity of Concern) may receive DOE funds or perform work under any authorized activity, subject to certain penalties. See Section 10114 of Public Law 117-167 (42 U.S.C. § 18912) and Division D, Title III, Section 310 of Division D of the Consolidated Appropriations Act of 2024 (Pub. L. No. 118-42) for additional information.

By submitting an application to this RFO, the Applicant is certifying that neither the Application nor any of the Project participants qualify as Entities of Concern.

Definitions

Entity of Concern is defined as in section 10114 of Public Law 117-167 (42 U.S.C. § 18912), also known as the CHIPS and Science Act, as any entity, including a national, that is—

- i. identified under section 1237(b) of the Strom Thurmond National Defense Authorization Act for FY 1999 (50 U.S.C. § 1701 note; Public Law 105–261);
- ii. identified under section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for FY 2021 (10 U.S.C. § 113 note; Public Law 116– 283);
- iii. on the Entity List maintained by the Bureau of Industry and Security of the Department of Commerce and set forth in Supplement No. 4 15 C.F.R. § 744;
- iv. included in the list required by section 9(b)(3) of the Uyghur Human Rights Policy Act of 2020 (Public Law 116–145; 134 Stat. 656); or
- v. identified by the Secretary, in coordination with the Director of the Office of Intelligence and Counterintelligence and the applicable office that would provide, or is providing, covered support, as posing an unmanageable threat—

(1) to the national security of the United States; or

(2) of theft or loss of United States intellectual property.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

G. TRANSPARENCY OF FOREIGN CONNECTIONS

Applicants must provide a transparency of foreign connections disclosure and certification as it relates to the proposed Project participants. Include a separate disclosure for the Application and each proposed participant.

Disclosure Format

For the convenience of the entity providing the disclosure and certification a template is available at [Transparency of Foreign Connections Disclosure and Certification](#) however, the entity is not required to use this specific format. If another format is used, the signatory must include the same substantive information, a signature, date, and the certification statement provided at [Transparency of Foreign Connections Disclosure and Certification](#).

Disclosure exceptions by entity type:

- i. U.S. National Laboratories and domestic government entities are not required to respond to the Transparency of Foreign Connections disclosure.
- ii. Institutions of higher education are only required to respond to items with an asterisk symbol (*).
- iii. The applicability of disclosure requirements is determined by the entity type. Regardless of whether the applicant is exempt, the subrecipient(s) must provide these disclosures unless the subrecipient is also exempt.

Applicants, regardless of entity type, must provide complete responses for Project team members that are not U.S. National Laboratories, domestic government entities, or institutions of higher education.

DOE reserves the right to request additional or clarifying information based on the information submitted.

Prior to selection and during the life of the lease, if circumstances change which impact the accuracy of the disclosures (e.g., foreign ownership or control changes), the Applicant must submit updated disclosures to DOE within fifteen (15) business days of learning of the changed circumstances.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Prohibition Related to Malign Foreign Talent Recruitment Programs

Prohibition

Individuals participating in a [Malign Foreign Talent Recruitment Program](#) are prohibited from participating in this award.

Should an award result from this RFA, the recipient must exercise ongoing due diligence to reasonably ensure that no such individuals participating on the DOE-funded project are participating in a *Malign Foreign Talent Recruitment Program*. Consequences for violations of this prohibition will be determined according to applicable law, regulations, and policy.

Further, the recipient must notify DOE within five (5) business days upon learning that an individual on the project team is or is believed to be participating in a malign foreign talent recruitment program. DOE may modify and add requirements related to this prohibition to the extent required by law.

Required Certifications

- a. Each covered individual must certify that they are not party to a [Malign Foreign Talent Recruitment Program](#).
- b. The applicant and the subrecipients must certify that the covered individuals in their respective employment have been made aware of the Malign Foreign Talent Recruitment Program prohibition and have complied with their certification responsibilities identified in a.

Non-Discrimination

DOE will ensure that the Malign Foreign Talent Recruitment Program Prohibition is carried out in a manner that does not target, stigmatize, or discriminate against individuals on the basis of race, ethnicity, or national origin, consistent with title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000(d) et seq.).

Definitions

Malign Foreign Talent Recruitment Program. as defined in Pub. L. No. 117-167, Section 10638(4):

- A. any program, position, or activity that includes compensation in the form of cash, in-kind compensation, including research funding, promised future compensation, complimentary foreign travel, things of non de minimis value, honorific titles, career advancement opportunities, or other types of remuneration or consideration directly provided by a foreign country at any level (national, provincial, or local) or their designee, or an entity based in, funded by, or affiliated with a foreign country, whether or not directly



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

sponsored by the foreign country, to the targeted individual, whether directly or indirectly stated in the arrangement, contract, or other documentation at issue, in exchange for the individual—

- i. engaging in the unauthorized transfer of intellectual property, materials, data products, or other nonpublic information owned by a United States entity or developed with a federal research and development award to the government of a foreign country or an entity based in, funded by, or affiliated with a foreign country regardless of whether that government or entity provided support for the development of the intellectual property, materials, or data products;
- ii. being required to recruit trainees or researchers to enroll in such program, position, or activity;
- iii. establishing a laboratory or company, accepting a faculty position, or undertaking any other employment or appointment in a foreign country or with an entity based in, funded by, or affiliated with a foreign country if such activities are in violation of the standard terms and conditions of a federal research and development award;
- iv. being unable to terminate the foreign talent recruitment program contract or agreement except in extraordinary circumstances;
- v. through funding or effort related to the foreign talent recruitment program, being limited in the capacity to carry out a research and development award or required to engage in work that would result in substantial overlap or duplication with a federal research and development award;
- vi. being required to apply for and successfully receive funding from the sponsoring foreign government's funding agencies with the sponsoring foreign organization as the recipient;
- vii. being required to omit acknowledgment of the recipient institution with which the individual is affiliated, or the federal research agency sponsoring the research and development award, contrary to the institutional policies or standard terms and conditions of the federal research and development award;
- viii. being required to not disclose to the federal research agency or employing institution the participation of such individual in such program, position, or activity; or
- ix. having a conflict of interest or conflict of commitment contrary to the standard terms and conditions of the federal research and development award; and

B. a program that is sponsored by—

- i. a foreign country of concern or an entity based in a foreign country of concern, whether or not directly sponsored by the foreign country of concern;
- ii. an academic institution on the list developed under section 1286(c)(8) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (10 U.S.C. § 2358 note; 1 Public Law 115–232); or
- iii. a foreign talent recruitment program on the list developed under section 1286(c)(9) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (10 U.S.C. § 2358 note; 1 Public Law 115–232).

Consistent with applicable law (42 U.S.C. § 19232), this provision does not prohibit, unless such activities are funded, organized, or managed by an academic institution or a foreign



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

talent recruitment program on the lists developed under paragraphs (8) and (9) of section 1286(c) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (10 U.S.C. § 4001 note; Public Law 115–232)—

- A. making scholarly presentations and publishing written materials regarding scientific information not otherwise controlled under current law;
- B. participation in international conferences or other international exchanges, research projects or programs that involve open and reciprocal exchange of scientific information, and which are aimed at advancing international scientific understanding and not otherwise controlled under current law;
- C. advising a foreign student enrolled at an institution of higher education or writing a recommendation for such a student, at such student's request; and
- D. other international activities determined appropriate by the federal research agency head or designee.

H. DUE DILIGENCE REVIEW FOR RESEARCH, TECHNOLOGY, AND ECONOMIC SECURITY

All proposals submitted to DOE are subject to a research, technology, and economic security (RTES) risk review to identify potential risks of undue foreign influence. As part of the review, DOE may contact the Applicant and/or proposed Project team members for additional information to inform the review. This review is conducted separately from the technical merit review. Selected Projects are subject to ongoing RTES reviews and monitoring during the life of the lease or easement. DOE may share information regarding the risks identified as part of the RTES due diligence review process or monitoring with other Federal agencies.

In the event an RTES risk is identified, DOE may require risk mitigation measures, including but not limited to, requiring that an individual or entity not participate in the Project. If significant risks are identified and cannot be sufficiently mitigated, DOE may elect to eliminate the Applicant from consideration or terminate the lease or easement.

DOE's decision regarding a due diligence review is not appealable.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

I. DATA

Application Data

Applicants should include business sensitive data (e.g., commercial or financial information that is privileged or confidential), trade secrets, proprietary, or otherwise confidential information (e.g., information about cultural resources) in their application only to the extent such information is necessary to convey an understanding of the proposed project or to comply with a requirement in the RFA. For DOE to protect proprietary or otherwise sensitive information, the Applicant must also treat the information as confidential and properly mark it as described below.

Notice of Restriction on Disclosure and Use of Data:

Pages [list applicable pages] of this document may contain trade secrets, confidential, proprietary, or privileged information that is exempt from public disclosure. Such information shall be used or disclosed only for evaluation purposes. The Government may use or disclose any information that is not appropriately marked or otherwise restricted, regardless of source. [End of Notice]

The header and footer of every page of the application that contains confidential, proprietary, or privileged information must be marked as follows: "Contains Trade Secrets, Confidential, Proprietary, or Privileged Information Exempt from Public Disclosure." In addition, each line or paragraph containing proprietary, privileged, or trade secret information must be clearly marked with double brackets or highlighting.

Failure to comply with these marking requirements may result in the disclosure of the unmarked information under the Freedom of Information Act (FOIA) or otherwise. These protections do not apply to information that the Applicant has released publicly or is in the public domain. For additional information on DOE's FOIA regulations, see 10 C.F.R. § 1004."

Project Data

Applicants may need to grant DOE a perpetual, non-assignable license for specific uses of novel data, technical, financial, or otherwise, generated during the course of the project. DOE may utilize such data to support its efforts for future research pertaining to recycling facility authorization and safety case justifications. Licensed data may include, but are not limited to, data associated with authorization of recycling facilities and particular operational data. However, if any requested data are technical, commercial, or financial data first produced in the performance of the agreement which, and if it had been obtained from and first produced by a non-Federal party, would be considered a trade secret or commercial or financial information that is privileged or confidential under the meaning of 5 U.S.C. § 552(b)(4), pursuant to special OT statutory authority, such data are eligible for protection from public disclosure for up to 30



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

years after the data are generated or first produced (Protected Data). Such Protected Data must be appropriately marked as protected data when delivered to DOE as outlined in the OTA terms.

3. INSTRUCTIONS TO APPLICANTS

System for Award Management (SAM) registration is required in order to be eligible for selection. Registration must remain active throughout the term of the Project.

Requirements before Submission:

SAM.gov Registration – can take up to 30 days

Effective January 1, 2020, SAM is the central repository for common government-wide certifications and representations required of federal solicitation awardees. As registration in SAM is required for eligibility for a federal award and registration must be updated annually, Federal agencies use SAM information to comply with award requirements and avoid increased burden and costs of separate requests for such information, unless the awardee fails to meet a federal award requirement, or there is a need to make updates to their SAM registration for other purposes.

Applicants must have an active account with SAM.gov. This includes having a Unique Entity Identifier (UEI). SAM.gov registration can take several weeks. Begin that process today.

To register, go to <https://sam.gov/entity-registration> and click “Get Started”. On the same page, the Entity Registration Checklist also has information needed to register.

FedConnect – can take 48-72 hours

Registering with www.fedconnect.net is fast and easy. Only individuals who are designated as Points of Contact in SAM.gov can create a new company account.

Interested parties are encouraged to click on the “Register to Receive Notifications” button in the middle of the page when viewing the opportunity. If that link is not found, click on the “Join” button in the lower right-hand corner of the screen. This will allow FedConnect to send Applicants any related notifications for this opportunity. Once an entity “joins,” it will register the account as part of the “Response Team.” Applications are submitted as Responses to the opportunity through the FedConnect Message Center. If an applicant experiences technical difficulties with a submission, the applicant should contact FedConnect Support for assistance.

This RFA is not for an acquisition of goods, services, or facilities for DOE consumption/use and as such, is not governed by the Federal Acquisition Regulation (FAR). This RFA supports a real estate transaction granting temporary use of DOE controlled property. DOE is opting to solicit responses to this RFA to inform a decision on granting one or more Lease Agreements on this



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Property, but DOE retains its right to grant use of this Property in any manner it deems appropriate, consistent with applicable laws and regulations.

In no event shall this RFA or any agreement arising as a result of this RFA require or otherwise obligate the DOE to purchase any service or product from or of the Project. The Government makes no representations regarding the Applicant's ability to secure an agreement(s) for sale and purchase of the services or products arising directly or indirectly from the Project, Lease Agreement, or the Property.

Applicant(s) shall be responsible, at its own expense, for all costs associated with its proposal, including but not limited to, preparation costs, legal consulting, engineering, permitting, and compliance with applicable laws and regulations. DOE is not responsible for any costs associated with Applicant(s)' proposals.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Submission of Responses

Applications should be submitted by e-mail to nebekeas@id.doe.gov.

Submitted proposals shall be written in the English language and correspond with the Sections, Factors, and Subfactors listed in Section 2. Proposals should be submitted on 8.5 x 11-inch pages with margins no less than one inch on all sides and standard 12-point font using Microsoft Word and/or Adobe Systems Portable Document Format (PDF). Page numbers must be included in the footer of every page. Pages exceeding these limits will not be accepted, reviewed, or evaluated. Financial documents and statements as well as completed past performance forms do not count towards the total page limit.

Technical Volume

The Technical Volume is limited to 50 pages plus listed attachments which do not count towards the 50-page limit. The response shall be single-spaced pages with no less than 1-inch margins and 12-point font, formatted to fit 8.5 inch-by 11-inch paper. All documents must be written in the English language. Submissions shall be in Microsoft Word or searchable Adobe Acrobat Portable Document Format (PDF). The Technical Volume shall include the following sections as a one-file submittal with each of the following sections clearly labeled:

Section		Description of Section Content
No.	Title	
Cover Page	Cover Page	Cover page must include: Applicant and any team members, if applicable. Clearly indicate which Applicant member is the lead and will execute the Other Transaction Authority, (OTA) on behalf of the applicant and be responsible for all OTA performance obligations. Business size. Technical points of contact to include salutation, last name, first name, street address, city, state, zip code, telephone and electronic mail. Administrative points of contact to include salutation, last name, first name, street address, city, state, zip code, telephone and electronic mail. Date of submission. Applicant(s) UEI Number(s). Table of Contents.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
 DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
 REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Section		Description of Section Content
No.	Title	
Exec Sum	Executive Summary	The Executive Overview section shall include the Applicant's plan for the development and deployment of recycling technologies and the key milestones needed to accomplish the effort requested by the Government. A summary of innovative claims and relevant experience of the key personnel and Applicant team members should also be included.
1	Facility and Technology Maturity	Explanation of the recycling technologies and facilities that are proposed for utilization. Include key technology features and readiness of the facilities, design progression/maturity, the Technology Readiness Level (TRL) [ref. DOE G 413.3-4A] of critical technology elements, and manufacturer of major components. Reference to the points listed in section E of this RFA should be addressed.
2	Nuclear Materials	Provide the quantity of U.S. government-owned nuclear materials your company plan to acquire. Provide detailed plans for acquisition, packaging, transportation, stabilization, and storage, including disposition of all associated waste following the proposed recycling of the nuclear materials. Include material safeguards and security plans for the associated facilities.
3	Project Planned Schedule	Schedule of activities from submission of the application through the design, construction, and operation of nuclear fuel recycling technology. The schedule should provide sufficient detail to demonstrate the applicant's lifecycle for operating the facilities site including fuel utilization and waste management. Applicants shall submit their schedule in the format of a Work Breakdown Structure, plus one additional level of detail to show activities that support major milestones. DOE review points should be clearly identified.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
 DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
 REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Section		Description of Section Content
No.	Title	
4	Facility Site Integration	Explanation of how the proposed facility interfaces with the targeting site location and any needs that are beyond the current capabilities of the proposed site (e.g., site modifications, specialized equipment or tools, new facilities, etc.) A general site arrangement drawing should be provided.
5	Regulatory Plan	Explanation of the regulatory compliance plan including regulatory requirements for nuclear safety, permitting, quality, and environmental regulatory compliance.
6	Funding	Explanation of the funding amounts and sources that have been secured to support activities from application submission through decommissioning, including any future funding that the Applicant will need to secure. Applicant cost estimates for the same time period should also be provided. Any material change to the status of this information must be reported to DOE.
7	Experience and Capabilities	Explanation of the Applicant's experience, as well as the credentials of key personnel and management infrastructure (e.g., leadership, engineering design, quality assurance, procurement, project controls, etc.). In addition, describe any partnerships that will be leveraged, and the nature of those partnerships. The Management Infrastructure will discuss in detail how the Applicant intends to manage the overall scope of the project. The section must detail: Management of Applicant Team: Applicant Team's capability to manage the team of performers participating on the project. All entities participating as a team member must be discussed in detail, along with the Applicant Team's strategy for managing and integrating the efforts of these various performers. Include short descriptions of past projects and information on whether the project was completed on time or within budget.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Section		Description of Section Content
No.	Title	
Attachment 1	Project Schedule	See Section 3 above. Information in the Attachment will be a more in-depth schedule presented in chart form.
Attachment 2	Resumes	For each proposed key personnel, Applicants shall submit resumes, not to exceed one (1) page per key person proposed. Describe in sufficient and succinct detail the technical experience of the proposed individual that meets or exceeds the minimum education and experience required to perform the work. Applicant must include the completed Current and Pending Support Disclosures as part of this attachment (see Sec. G “Application Review Information”).
Attachment 3	Transparency of Foreign Connections	Applicant shall submit the completed and certified Transparency of Foreign Connections document (see Sec. G “Application Review Information”). Document can be found at: Transparency of Foreign Connections Department of Energy .



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

4. SELECTION

DOE will evaluate applications to determine, based on merit, which applications meet the qualifications and are selectable to participate in this program. The Government reserves the right to select all, some, or none of the applications received in response to this RFA. DOE intends to accommodate all qualified submissions; however, if it is not practicable or there is not enough land to accommodate all qualified submissions, DOE will assess each application, and priority will be based on how well the proposed solution addresses the technical adequacy characteristics below. DOE reserves the right to ask for companies to brief DOE review team during the evaluation.

The Application Technical Adequacy Characteristics will be evaluated equally, with no single category receiving greater weight than another in the overall assessment of the proposed solution's technical adequacy.

Category	Technical Adequacy Characteristics
Likelihood of Project Success	The Project plan and integrated schedule lays out a clear and logical strategy for permitting/licensing, development, construction, operation, and decommissioning. A clear understanding of material control and accountability, safeguards, security, and emergency management requirements are demonstrated by the team. A clear understanding of criticality control and working in high radiation environments are demonstrated by the team. A total lifecycle approach is demonstrated including but not limited to mass balance for products and all waste produced. Significant project risks are identified with appropriate mitigations; and relevant supply chains are understood, gaps are identified, and solutions to identified gaps are reasonable and support the overall project plan.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
 DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
 REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Category	Technical Adequacy Characteristics
Experience and Capabilities	The Project team has demonstrated that it has the management capability and experience necessary for project success, consistent with the complexity and level of risk involved in the Project. Key personnel have the credentials, capabilities, and experience to successfully accomplish the Project. The Project team has demonstrated past performance in managing projects of similar scope, size and complexity that meet project objectives, remain within budget and on schedule.
Budget and Financing	A reasonable and supportable budget estimate has been established that addresses the full project scope and life cycle. The Applicant's funding sources are secure and sufficient to execute the Project, including decommissioning. Funding is sufficient to cover the Applicant's contingency for realized risk. There is a demonstrated demand and a reasonable probability of commercial success with additional consideration for contracted off-take arrangements and/or advanced interconnection queue position already in place. The proposed lease payment(s) or other forms of consideration are reasonable and address all project periods.
Regulatory Compliance and Siting	Ability to comply with applicable laws and regulations including NEPA and NHPA. Ability to meet requirements at the Idaho site, effective property management, obtaining necessary permits, compliance with applicable codes and standards, adherence to environmental and reporting requirements, implementation of appropriate safeguards and security measures, emergency preparedness, and arranging necessary utilities. A reasonable engagement strategy with the local community and stakeholders has been identified that includes surrounding communities and local state and federal government authorities; and impacts on the local community have been identified.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

The Government may also consider the following program policy factors in determining which proposal(s) to select for subsequent negotiations:

- a. The degree to which the awarded projects represent a diversity of technical approaches, methods, and/or market segments.
- b. The degree to which the proposed Project plans to use domestic entities or component and/or services from the domestic supply chain, to complete the Project.

DOE shall review applications for agreements or foreign ownership, control, or influence. DOE in its sole discretion may utilize this information to reject applicants based on discovered security risks.

DOE anticipates selecting one or more Applicants to enter into long term lease agreement(s) as detailed in this RFA. The Government reserves the right to select any number of Applicants—or no Applicants—to participate in this program if it is in the Government's best interest to do so. DOE expects to announce initial selections of Applicants in accordance with the deadlines on the cover page. If you are selected to participate in this program, you will receive a notification from DOE to finalize an agreement with DOE. Upon approval of an application for this program, DOE will establish a team to provide assistance to the Applicant.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

APPENDIX A – Description of Advanced Test Reactor Used Nuclear Fuel

Introduction

The Advanced Test Reactor (ATR) is a materials and fuels test nuclear reactor that performs irradiation services for the U.S. Department of Energy (DOE) Office of Nuclear Energy (NE), Naval Reactors, the National Nuclear Security Administration (NNSA), and other research programs. ATR achieved initial criticality in 1967 and is expected to operate in support of needed missions until the year 2050 or beyond. It is anticipated that ATR will generate approximately 105 used nuclear fuel (UNF) elements per year through the year 2050. Idaho National Laboratory (INL) currently stores approximately 3400 UNF assemblies with 2/3rd in dry storage, and 1/3rd in wet storage.

ATR UNF Management

ATR UNF management process is invoked once it has been determined that an ATR fuel element will no longer be used in ATR. This process begins with cooling, approximately one year, in the ATR canal to meet decay heat requirements for transport to CPP-666. An additional five years of cooling in CPP-666 are required prior to UNF drying and dry storage in CPP-603.

General Characteristics of ATR UNF

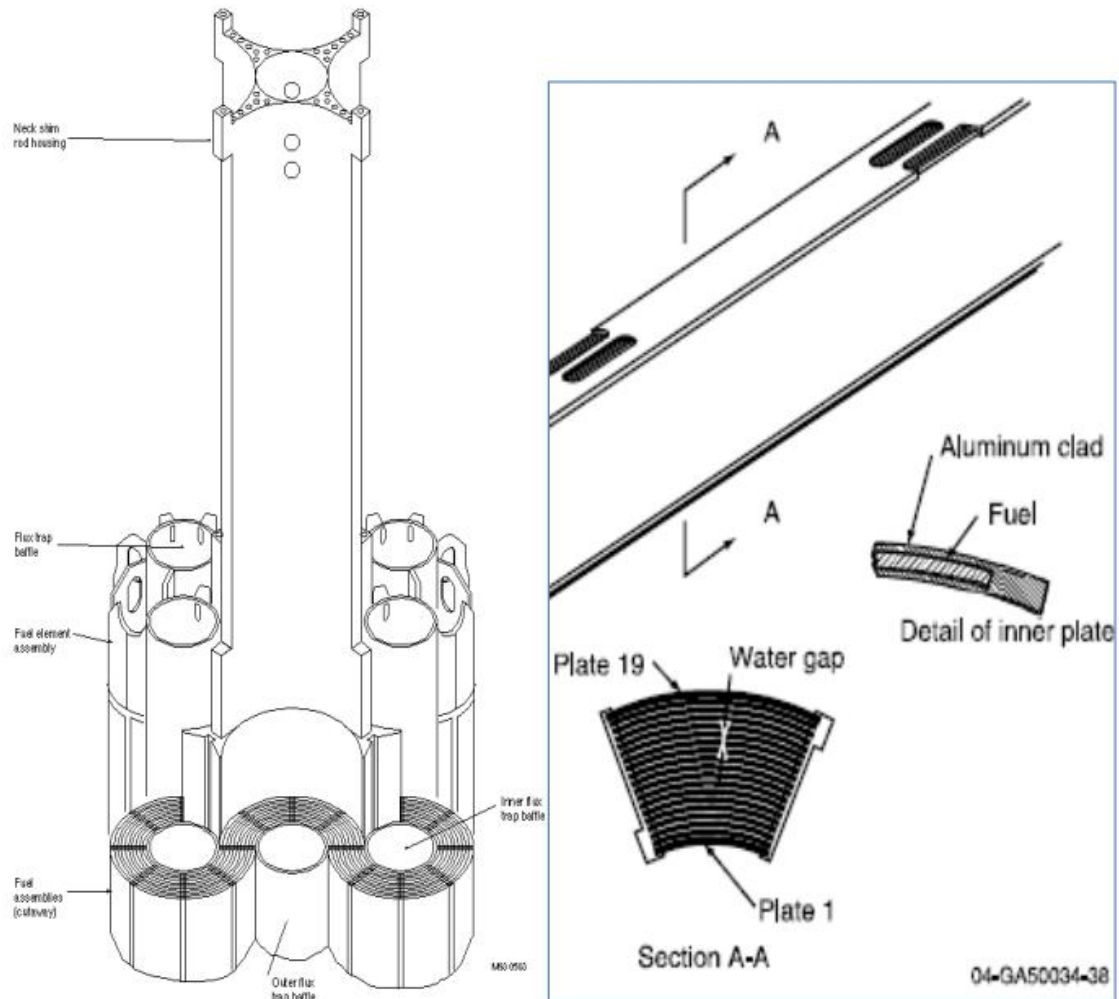
ATR fuel is highly enriched uranium (i.e., 93%) consisting of uranium aluminide particles surrounded by an Al-8001 matrix with Al-6061 cladding. An ATR fuel element consists of 19 parallel (i.e., concentric) curved plates of different widths (Figure 1) attached by side framing to form a 45-degree wedge. Each fuel element is 2.55 in. wide and 66.25 in. long, with an active fuel length of 48.0 in. All fuel plates, except plates 1 and 19, are approximately 0.050 in. thick with 0.015 in. of cladding and 0.020 in. of fuel. Plates 1 and 19 are 0.080-in. and 0.100-in. thick, respectively.

The ATR core is serpentine shaped and composed of 40 elements. ATR elements are staged and cooled in a water-filled canal next to the core. Used elements are frequently re-inserted after a period of cooling to optimize use of the remaining uranium in the element. When it is determined that used elements will not be re-inserted into the reactor, the hardware at the end of the elements is cut off and the used element is ready for transfer to CPP-666.



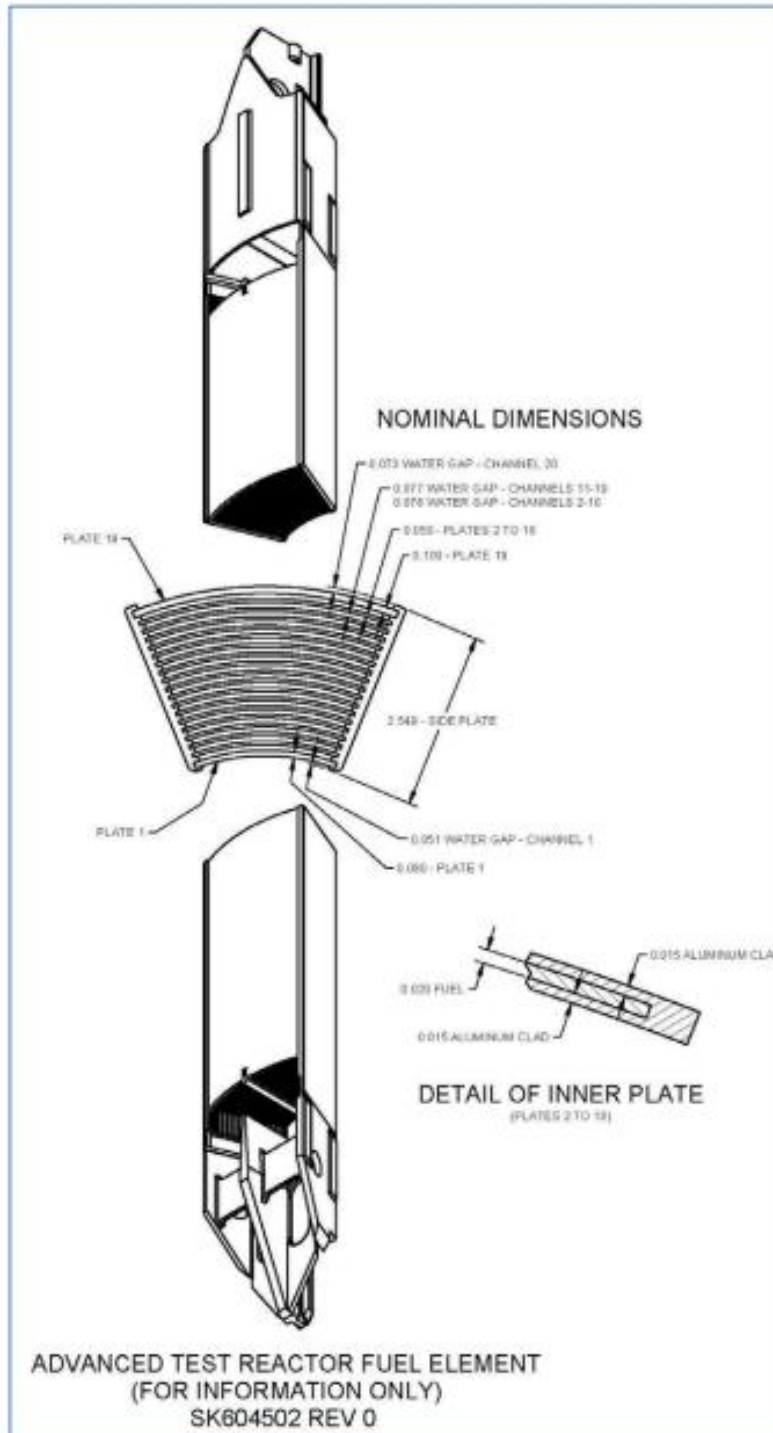
DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Figure 1:-Dimensions and Configuration of ATR UNF element.





DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001





DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

APPENDIX B – ADDITIONAL INFORMATION ON ENERGY DOMINANCE FINANCE OFFICE

Energy Dominance Finance

The Department of Energy (DOE) Energy Dominance Finance (EDF) is able to provide loans and loan guarantees through several financing programs. Of particular relevance to this RFA, the Title 17 Energy Financing Program (Title 17) provides financing to support American energy deployment, through two primary vehicles:

1. Innovative Energy and Innovative Supply Chain (Section 1703, 42 U.S.C. § 16513). To qualify for Section 1703 financing, energy projects must involve either innovative technologies or be paired with investments from State Energy Financing Institutions (SEFI), which are entities established by a state, Indian Tribal entity, or Alaska Native Corporation to provide financing support or credit enhancements for eligible energy projects and to take steps to reduce financial barriers to the deployment of eligible energy projects.
2. Energy Dominance Financing Program (EDF) (Section 1706, 42 U.S.C. § 16517, recently expanded and revised by the One Big Beautiful Bill Act (OBBBA)). To qualify for Section 1706 financing, a project must satisfy one of the following eligibility criteria: 1) retool, repower, repurpose, or replace energy infrastructure that has ceased operations, 2) enable operating energy infrastructure to increase capacity and output; or 3) support or enable the provision of known or forecastable electric supply at time intervals necessary to maintain or enhance grid reliability or other system adequacy needs.

Examples of eligible project types that may qualify for EDF financing include nuclear reactors, enhanced geothermal systems, investments into grid stability and reliability, and development of energy infrastructure to support AI and data center deployment. Across the supply chain, eligible project types may also include fabrication and nuclear component manufacturing. As revised by OBBBA, projects seeking financing through the 1706 EDF Program must receive a designated Conditional Commitment from EDF on or before September 30, 2028.

Loans can be direct loans from the Federal Financing Bank (FFB) backed by a 100 percent “full faith and credit” DOE guarantee with no minimum or maximum loan size and flexible structures. The loan amount may be up to 80 percent of eligible project costs and up to 30 years in repayment term. EDF debt must be senior secured or pari passu with other senior secured debt. EDF can consider lending unsecured to a wide array of borrowers including investment grade utilities that do not have the ability to issue secured debt. For additional details on EDF loans and loan guarantees, visit: [Loan Programs Office | Department of Energy](#). For details on EDF loan pricing, visit [Pricing for EDF Financing by Program | Department of Energy](#).



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

EDF engages early with applicants and remains a partner for the lifetime of the loan through a six- step process, outlined as follows:

1. Pre-Application – EDF meets with the potential applicant to discuss project eligibility, application process, and applicant questions to help determine if the project is a good fit for EDF financing.
2. Application and Review – This step occurs in two parts. In Part I, EDF reviews the project to determine technical eligibility in accordance with the underlying statutes. In Part II EDF determines project viability and readiness to proceed into due diligence based on programmatic, technical, environmental compliance and financial evaluations, including traditional underwriting of debt.
3. Due Diligence – If Part II is accepted, EDF and the applicant engage third-party advisors (paid for by applicants) and negotiate the proposed transaction structure and term sheet details.
4. Conditional Commitment – Following due diligence, finalization of a term sheet, receipt of required interagency and DOE approvals, and validation that the proposed transaction satisfies all statutory requirements, EDF offers a conditional commitment and term sheet to the applicant. The conditional commitment is contingent on the borrower satisfying certain conditions precedent and other requirements of the conditional commitment.
5. Financial Close – EDF and the applicant execute definitive financing documents, subject to additional conditions precedent to loan disbursements.
6. EDF Monitoring – EDF monitors the project and acts as a trusted partner for the life of the loan, acting in the best interest of the U.S. Government and taxpayers . EDF Title 17 loans are subject to a “denial of double benefit” or “federal support restriction” which prohibits DOE from issuing loan guarantees to projects that are expected to benefit directly or indirectly from certain other forms of federal support. Applicants intending to seek EDF financing should specify how they plan to successfully complete the project while remaining in compliance with the denial of double benefit rule. An applicant may face restrictions on their ability to secure a loan through EDF financing if they are also obtaining rights for the use of federal land at below fair market rates or relying on certain types of arrangements with federal agencies to support the project or obtain goods or services from the project. The federal support restriction comes into play in cases where the project is dependent upon future federal spending to ensure its viability and ability to repay a guaranteed loan.

EDF will work with applicants to understand how federal support restrictions might impact each potential project. DOE encourages potential applicants that may seek or anticipate federal support for a proposed project to arrange a pre-application consultation to better understand the potential impact to any loan guarantee issued under Title 17: Request a Pre-Application



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

Consultation with EDF | Department of Energy. The EDF process will be subject to applicable rules and requirements.

Denial of Double Benefit

Applicable Law

Section 5.0141(d) of the OBBBA sets out the statutory framework of the restriction related to DOE's authority to guarantee loans under Title 17 of the Energy Policy Act of 2005:

(2) Denial of double benefit.--Except as provided in paragraph (3), none of the amounts made available under this section for loan guarantees shall be available for commitments to guarantee loans for any projects under which funds, personnel, or property (tangible or intangible) of any Federal agency, instrumentality, personnel, or affiliated entity are expected to be used (directly or indirectly) through acquisitions, contracts, demonstrations, exchanges, grants, incentives, leases, procurements, sales, other transaction authority, or other arrangements to support the project or to obtain goods or services from the project.

(3) Exception.--Paragraph (2) shall not preclude the use of the loan guarantee authority provided under this section for commitments to guarantee loans for--

(A) projects benefitting from otherwise allowable Federal tax benefits;

(B) projects benefitting from being located on Federal land pursuant to a lease or right-of-way agreement for which all consideration for all uses is--

(i) paid exclusively in cash;

(ii) deposited in the Treasury as offsetting receipts; and

(iii) equal to the fair market value;

(C) projects benefitting from the Federal insurance program under section 170 of the Atomic Energy Act of 1954 (42 U.S.C. § 2210); or

(D) electric generation projects using transmission facilities owned or operated by a Federal Power Marketing Administration or the Tennessee Valley Authority that have been authorized, approved, and financed independent of the project receiving the guarantee.



DEPARTMENT OF ENERGY OFFICE OF ENVIRONMENTAL MANAGEMENT
DEMONSTRATION OF RECYCLING DEFENSE USED NUCLEAR FUEL
REQUEST FOR APPLICATION NUMBER: DE-FOA-0000001

EDF's Application of the Federal Support Restriction

Generally, DOE cannot finance projects that are expected to benefit from certain other forms of federal support, including grants, cooperative agreements, or other loan guarantees from federal agencies or entities. The federal support restriction exists to ensure that an EDF loan is not repaid using other federal dollars. Federal support that pre-dates an EDF loan or that impacts an aspect of the project that is fully separate from the EDF loan may not trigger federal support restrictions.

Companies or projects that have previously benefitted from federal support but no longer do (e.g., have exhausted the grant or repaid the loan in question) will not encounter federal support restrictions. If a company or project currently benefits from federal support, the applicant should evaluate whether this federal support impacts the same project or phases of a project for which the applicant is seeking EDF financing. The expectation of federal support should be assessed at the time of the loan guarantee conditional commitment. The mere possibility of federal support at the time of conditional commitment is insufficient to trigger the restriction.

EDF's underwriting process requires confirmation that the project is not dependent upon future federal spending for its viability and ability to repay a guaranteed loan. The federal support restriction is not intended to bar all federal funds that may be traced to a Title 17-supported project or loan application. For the restriction to apply, the support or purchase must be directed clearly to the project, as distinct from more generalized objectives, such as an ordinary course purchase of goods or services from commercial counterparties in market-based arms' length transactions. EDF works with applicants to conduct a fact-specific analysis to determine the applicability of the denial of double benefit rule for particular projects.